

26STLC00700 26STLC00700

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F27%2F2026

Source SHA-256: da7f8e560a1645160cf191b2245a7168c86b7cb8fc3b0adf6d4c92e3f6784c15

Case Number: 26STLC00700 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Zhiwei Chen's Motion to Vacate Ex Parte Order

Dated June 23, 2026 is denied.

Analysis:

Plaintiff Zhiwei Chen ("Plaintiff") filed the instant action against Defendant Five Points Towing, LLC ("Defendant") on February 2, 2026. Defendant filed its Answer on March 12, 2026. On May 5, 2026, Plaintiff filed (1) Motion to Deem Requests for Admission Admitted; and (2) Motion to Compel Responses to Special Interrogatories and Requests for Production. The discovery motions were set for hearing on June 25, 2026.

On June 18, 2026, Defendant filed an Ex Parte Application for Order Continuing Hearing on Motions, which the Court denied on June 23, 2026. (Minute Order, 06/23/26.) The Court ruled that it would consider Defendant's arguments at the hearing on the Motions. (Ibid.) Plaintiff filed a Supplemental Notice with respect to the discovery motions and an opposition to the Ex Parte Application on June 22, 2026. Plaintiff filed this Motion on June 25, 2026.

Discussion

Plaintiff moves to vacate the Court's order dated June 23, 2026 pursuant to Code of Civil Procedure section 473, subdivision (b). Section 473, subdivision (b), however, only "relieve[s] a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party" (Code Civ. Proc., § 473, subd. (b), emphasis added.) The order dated June 23, 2026 was not

taken against Plaintiff. Instead, the Court denied Defendant's request to continue the hearing date on Plaintiff's discovery motions. The Motion does not demonstrate how this denial operated against Plaintiff's interests. Relief under section 473, subdivision (b) is not available to Plaintiff for this order.

Conclusion

Therefore, Plaintiff Zhiwei Chen's Motion to Vacate Ex-Parte Order Dated June 23, 2026 is denied.

Moving party to give notice.